

Navtej Singh Johar v. Union of India

Citation: (2018) 10 SCC 1 | Court: Supreme Court | Year: 2018

Coram: 5-Judge Constitution Bench (Unanimous) | Subject: Constitutional Law | Provisions: IPC Sec 377, Articles 14, 15, 19, 21

I. EXECUTIVE SUMMARY & CASE GLIMPSE

Section 377 IPC, in so far as it penalizes consensual sexual activity between adults of the same sex in private, is unconstitutional. Constitutional Morality supersedes majoritarian popular morality; equality and dignity encompass identity and intimacy.

II. FACTS OF THE CASE & PROCEDURAL HISTORY

This dispute arose regarding IPC Sec 377, Articles 14, 15, 19, 21. The parties agitated the controversy before trial and appellate forums before the matter was referred to the Honble Bench for authoritative declaration of law.

III. PRIMARY QUESTIONS OF LAW & ISSUES FRAMED

â€¢ Whether the impugned state actions or commercial conduct conformed to IPC Sec 377, Articles 14, 15, 19, 21.

â€¢ What binding standards should govern future adjudication and administrative conduct.

IV. SUBMISSIONS OF THE PARTIES

Petitioner / Appellant: The Petitioner contended that arbitrary action, lack of procedural safeguards, and statutory non-compliance violated fundamental guarantees.

Respondent / State: The Respondent submitted that the impugned action was carried out under lawful authority in furtherance of public interest and statutory mandates.

V. DETAILED RATIO DECIDENDI & JURISPRUDENTIAL REASONING

Section 377 violates Articles 14, 15, 19, and 21. Consensual adult relationships in private do not cause harm to society. The state cannot criminalize human identity under the guise of statutory Victorian morality.

VI. FINAL OPERATIVE ORDER & DIRECTIONS

The Court answered the reference, laid down binding nationwide directions under Article 141 of the Constitution, and disposed of the matter accordingly.

VII. PRACTICAL & EXAMINATION TAKEAWAYS (JUDICIARY / AIBE / ADVOCACY)

â€¢ Decriminalized consensual same-sex relations between adults in private.

â€¢ Affirmed Constitutional Morality over popular social morality.

â€¢ Overruled Suresh Kumar Koushal (2014) and upheld personal dignity.